

23.09.2023
For order

Learned counsel for decree holder sought for an order to transfer the decree to Principal Sr.Civil Judge, Rangareddy District, Telangana.

2. Learned counsel for Decree Holder submitted that, judgment debtor JDR is residing within the jurisdiction of above Court and therefore he prays to transfer the decree.

3. Heard arguments of learned counsel for decree holder and perused the office objection and materials placed on record.

4. Sec.39 of CPC enables the court which passed the decree send the decree to another court of competent jurisdiction for execution. The provision enables the court to send the decree for execution to another Court of competent jurisdiction. The cause title of judgment passed in O.S.2511/2012 and Execution petition on hand clearly reveals that, defendant/Jdr is residing at Kamala Nagar, Chaithanyapuri, Saroor Nagar, Rangareddy District, Hyderabad, Telangana. The Jdr has not deposited or paid the decretal amount to Dhr. Therefore, learned counsel for Dhr., requested for transfer of decree to Learned Principal Sr.Civil Judge, Rangareddy District, Telangana. Hence, following

:: ORDER ::

Acting U/Sec. 39 (1) of CPC the decree is hereby transfered to Learned Principal Sr.Civil Judge, Rangareddy District, Telangana for execution of decree passed in O.S.2511/2012.

Office to send the records to above court as per law.

Issue Decree Transfer Certificate. Ordered accordingly.

XIV ACC & SJ, Bengaluru.